



CHAPTER xxii.

An Act to make further provision respecting the capital and undertaking of the Metropolitan District Railway Company to confer further powers on the London and South Western Railway Company in respect of their Wimbledon and Fulham Railway and on the Wimbledon and Sutton Railway Company and for other purposes. A.D. 1915.
[24th June 1915.]

WHEREAS the Metropolitan District Railway Company (hereinafter called "the Company") were by the Metropolitan District Railway Act 1897 authorised to raise twelve hundred thousand pounds additional capital and to borrow in respect thereof four hundred thousand pounds for the construction of the Deep Level Railway authorised by that Act:

And whereas by section 3 (Application of portion of capital authorised by Act of 1897) of the Metropolitan District Railway Act 1905 the Company were authorised to apply to the general purposes of their undertaking three hundred thousand pounds of such additional capital and one hundred thousand pounds which they were by that Act authorised to borrow in respect thereof:

And whereas by section 6 (Power to borrow) of the said Act of 1905 the powers conferred upon the Company by the said Act of 1897 to borrow the sum of four hundred thousand pounds in respect of the said additional capital of twelve hundred thousand pounds were repealed and in substitution therefor the Company were authorised to borrow one hundred thousand pounds in respect of the three hundred thousand pounds additional capital which by the said Act of 1905 the Company

[Ch. xxii.] *Metropolitan District Railway* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. were authorised to apply to the general purposes of their undertaking and also to borrow three hundred thousand pounds in respect of nine hundred thousand pounds the balance of the said additional capital:

And whereas by section 7 (Debenture stock) of the said Act of 1905 the Company were authorised to create and issue debenture stock subject to the provisions of section 67 (Debenture stock) of the Metropolitan District Railway Act 1903:

And whereas the Company have raised the said three hundred thousand pounds of such additional capital and have issued one hundred thousand pounds debenture stock in respect thereof but the Company have not yet raised the nine hundred thousand pounds the balance of such additional capital or borrowed any moneys in respect thereof:

And whereas a portion of the Deep Level Railway authorised by the said Act of 1897 was under the powers of the said Act of 1903 constructed by the London Electric Railway Company and by the Metropolitan District Railway Act 1908 the Company were authorised to abandon the construction of the unconstructed portion of such Deep Level Railway:

And whereas by section 26 of the Metropolitan District Railway Act 1913 and by previous Acts relating to the Company passed in the years 1908 1910 and 1911 the Company are authorised to apply to the general purposes of their undertaking to which capital is properly applicable any moneys which they have power to raise by shares or stock or debenture stock and which may not be required for the purposes for which the same were authorised to be raised or borrowed:

And whereas the Company require the sum of three hundred thousand pounds to discharge liabilities incurred by them on capital account and for the general purposes of their undertaking to which capital is properly applicable:

And whereas owing to the general financial position of the Company and to the conditions brought about by the present war such sum of three hundred thousand pounds cannot be raised by ordinary or preference shares or stock except upon terms injurious not only to the holders of the existing ordinary and preference stocks of the Company but also to the permanent interests of the Company and it is therefore expedient that the Company should be authorised to raise the same on mortgage

or bond or by the issue of debentures or debenture stock in exercise of the said borrowing powers under the said Act of 1905 without being bound to raise the nine hundred thousand pounds additional share capital specified in that Act and in respect of which such borrowing powers are thereby granted: A.D. 1915.

And whereas it is expedient that the Company should be authorised to widen part of their railway at Hammersmith:

And whereas by the Metropolitan District Railway Act 1912 the London and South Western Railway Company (hereinafter referred to as "the South Western Company") were authorised to widen their Wimbledon and Fulham Railway over which the Company have and exercise running powers and the time for the compulsory purchase by the South Western Company of lands for the purposes of such widening was limited to three years from the seventh day of August one thousand nine hundred and twelve and it is expedient that the time so limited should be extended:

And whereas the Wimbledon and Sutton Railway Company (hereinafter called "the Wimbledon Company") were incorporated by the Wimbledon and Sutton Railway Act 1910 (hereinafter referred to as "the Wimbledon Act of 1910") and were empowered by that Act to construct the railways and works in the county of Surrey therein described commencing by a junction with the South Western Company's said Wimbledon and Fulham Railway at Wimbledon:

And whereas by section 12 (Running powers to Metropolitan District Railway Company) of the Wimbledon Act of 1910 the Company were authorised to run over and use the railways of the Wimbledon Company therein mentioned and the Company were by that Act also authorised to enter into agreements with the Wimbledon Company for the working of the Wimbledon Company's railways and for the supply of electrical energy for the purposes of working the same and the Company were also authorised by that Act to carry in through cars and carriages on and over the said Wimbledon and Fulham Railway of the South Western Company all traffic arising on or destined for or passing over the railways of the Wimbledon Company:

And whereas the time for the compulsory purchase by the Wimbledon Company of lands was by the Wimbledon Act of 1910 limited to three years from the twenty-sixth day of July

[Ch. xxii.] *Metropolitan District Railway* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. — one thousand nine hundred and ten and the time for the completion of the railways and works authorised by that Act was limited to five years from the twenty-sixth day of July one thousand nine hundred and ten :

And whereas by the Wimbledon and Sutton Railway Act 1913 (hereinafter referred to as "the Wimbledon Act of 1913") the said powers granted to the Wimbledon Company for the compulsory purchase of lands were extended for the period of two years from the twenty-sixth day of July one thousand nine hundred and thirteen and the said powers for the completion of the said railways and works were extended for the period of three years from the twenty-sixth day of July one thousand nine hundred and fifteen :

And whereas since the passing of the Wimbledon Acts of 1910 and 1913 negotiations have taken place and arrangements have been made with landowners and others whereby the raising of the capital for the construction of the said railways and works will be facilitated but owing to the general financial position and to the conditions brought about by the present war it has not been possible to raise the capital or to commence the construction of the said railways and works :

And whereas it is therefore expedient that the respective periods limited by the Wimbledon Act of 1913 for the compulsory purchase of lands for and for the completion of the said railways and works should be extended as hereinafter provided :

And whereas under the authority of the Acts relating to the undertaking of the Company lands in the county of Middlesex have been acquired and are now held by the Company for the purposes of their undertaking and it is expedient that the Company and the London and North Western Railway Company and the Midland Railway Company or either of those companies should be authorised to enter into agreements as to the use of such lands or some parts thereof for goods yards goods depôts and sidings by those companies or either of them :

And whereas it is expedient that the other powers in this Act mentioned should be conferred on the Company and on the other companies hereinafter mentioned :

And whereas plans and sections showing the lines and levels of the widening of the Company's railway at Hammersmith and of the other works by this Act authorised and plans showing the lands which may be taken under the powers of this Act and also a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerks of the peace for the counties of London and Middlesex and are hereinafter respectively referred to as the deposited plans sections and book of reference: A.D. 1915.

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1. This Act may be cited as the Metropolitan District Railway Act 1915. Short title.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Finance.

Part III.—Widenings of Company's railway.

Part IV.—Extensions of time.

Part V.—Wimbledon and Sutton Railway.

Part VI.—Miscellaneous.

3. The Lands Clauses Acts the Railways Clauses Consolidation Act 1845 Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 and as regards Part II. of this Act Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as those Acts are amended by any subsequent Act are (subject to the provisions of and so far as applicable to and as varied by this Act) incorporated with and form part of this Act. Incorporation of Acts.

[Ch. xxii.] *Metropolitan District Railway* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.
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 Interpretation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

“The Company” means the Metropolitan District Railway Company;

“The South Western Company” means the London and South Western Railway Company;

“The Wimbledon Company” means the Wimbledon and Sutton Railway Company;

“The London Company” means the London Electric Railway Company;

“The Wimbledon Act of 1910” means the Wimbledon and Sutton Railway Act 1910;

“The Wimbledon Act of 1913” means the Wimbledon and Sutton Railway Act 1913;

“The Act of 1897” “the Act of 1901” “the Act of 1902” “the Act of 1903” “the Act of 1905” “the Act of 1906” “the Act of 1908” “the Act of 1910” “the Act of 1911” “the Act of 1912” and “the Act of 1913” mean the Metropolitan District Railway Acts of 1897 1901 1902 1903 1905 1906 1908 1910 1911 1912 and 1913 respectively;

The expressions “parish clerks” and “clerks of the several parishes” in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

PART II.

FINANCE.

As to exercise of existing power to borrow three hundred thousand pounds.

5.—(1) Notwithstanding anything contained in any former Act the Company may borrow the sum of three hundred thousand pounds authorised to be borrowed by section 6 (Power to borrow) of the Act of 1905 or any part of such sum notwithstanding that at the time when such sum is borrowed the Company shall not have issued or raised the additional capital of nine hundred thousand pounds mentioned in that section or

any part thereof and may by virtue of this Act and without further or other sanction or authority borrow the said sum or any part thereof either on mortgage or bond or by the creation and issue of debentures or debenture stock subject to the provisions of section 67 (Debenture stock) of the Act of 1903. A.D. 1915.

(2) So much of subsection (2) of section 6 of the Act of 1905 as applies to the borrowing of the said sum of three hundred thousand pounds is accordingly hereby repealed.

6.—(1) The Company may from time to time issue as redeemable debenture stock any debenture stock which they are by this or any other Act authorised to create and shall previously to the issue of the same specify the terms and conditions on which the same may or shall be redeemed. Company may issue redeemable debenture stock.

(2) If it is so provided in such terms and conditions the Company may—

(a) call in and pay off such redeemable debenture stock or any part thereof at any time before the date (if any) fixed for the redemption thereof; and

(b) redeem such debenture stock or any part thereof either by paying off the stock or by issuing to the holder thereof subject to his consent other debenture stock in substitution therefor.

(3) Section 34 (Borrowing powers extinguished to extent of debenture stock) of the Companies Clauses Act 1863 shall not apply to the case of moneys raised by the issue of redeemable debenture stock and the Company may for the purpose of providing money for paying off the redeemable debenture stock or of providing substituted debenture stock or in the place of redeemable debenture stock previously paid off create and issue new debenture stock (either redeemable or irredeemable) of an equal larger or smaller amount or re-issue debenture stock originally issued under this section provided that the creation and issue or re-issue of such debenture stock does not make the total nominal amount of debenture stock issued and outstanding exceed the amount of debenture stock which the Company are for the time being authorised to create.

(4) All debenture stock of the Company issued as redeemable debenture stock shall be subject to the provisions of section 67 (Debenture stock) of the Act of 1903.

[Ch. xxii.] *Metropolitan District Railway* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.
Application
of Part V. of
Act of 1908.

7. Part V. of the Act of 1908 relating to bearer warrants and certificates shall extend and apply to any debenture stock or redeemable debenture stock which may be issued under the powers of this Part of this Act as fully and effectually to all intents and purposes as if it had been re-enacted *mutatis mutandis* in this Act.

Power to
borrow tem-
porarily.

8.—(1) The Company may borrow temporarily on the security of any debentures or debenture stock (whether redeemable or irredeemable) which they are by this or any other Act authorised to create or issue or re-issue and when any sum so borrowed is paid off or satisfied and the debentures or debenture stock constituting the security therefor shall have been transferred or surrendered to the Company such debentures or debenture stock shall not be deemed to have been issued or to be extinguished but the same may be re-issued by the Company and when so re-issued shall confer upon the holders thereof the same rights and priorities in all respects as if the same had never previously been issued and section 34 (Borrowing powers extinguished to extent of debenture stock) of the Companies Clauses Act 1863 shall not apply.

(2) The re-issue of any such debenture or debenture stock under the power by this section given to the Company shall be treated as the issue of a new debenture or new debenture stock for the purposes of stamp duty or duty but shall not be so treated for the purposes of any provision limiting the number or amount of debentures or debenture stock to be issued:

Provided that any person lending money on the security of (a) a debenture re-issued under this section which appears to be duly stamped or (b) debenture stock re-issued under this section may give the debenture or debenture stock certificate in evidence in any proceedings for enforcing his security without payment of the stamp duty or duty as the case may be or any penalty in respect thereof unless he had notice or but for his negligence might have discovered that the debenture was not duly stamped or had notice that duty had not been paid in respect of such debenture stock but in any such case the Company shall be liable to pay the proper stamp duty or duty as the case may be and any penalty.

Power to
Company to
apply funds

9.—(1) All moneys raised by the Company under this Part of this Act whether by debenture stock or borrowing shall be

applied to the purposes of this Act or to the general purposes of the Company's undertaking to which capital is properly applicable. A.D. 1915.

(2) The Company may apply to the purposes of this Act or to the general purposes of their undertaking to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by shares or stock or to borrow on mortgage or bond or by debentures or debenture stock and which may not be required for the purposes for which the same were authorised to be raised or borrowed. to purposes of Act and to general purposes of undertaking.

10. Notwithstanding the provisions of this Act or any Act relating to the Company or any Acts incorporated therewith the directors of the Company may from time to time by virtue of this Act and without further or other sanction or authority exercise the powers conferred by this Part of this Act but nothing in this section contained shall be deemed to limit the powers of the directors to exercise on behalf of the Company the powers conferred by any other Part of this Act. Powers may be exercised by directors.

11. Notwithstanding anything in this Act contained the Company shall not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Restrictions on raising money during war.

PART III.

WIDENINGS OF COMPANY'S RAILWAY.

12. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the widening of their railway at Hammersmith and works hereinafter described with all proper stations platforms junctions signals sidings approaches wires cables plant electrical and other machinery apparatus works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes and may take and use the subsoil and undersurface of or beneath any public street road footway or place shown on the deposited plans and described in the deposited book of reference or so much thereof as shall be necessary for the purposes of the said widening and Power to Company to make widening at Hammersmith.

[Ch. xxii.] *Metropolitan District Railway* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. works without being required to purchase the same or any easement therein or thereunder and no such subsoil and under-surface of or beneath any such public street road or footway so taken or used shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845.

The widening of railway at Hammersmith referred to in this section and authorised by this Act will be situate in the parish and metropolitan borough of Hammersmith and county of London and is—

A widening 1 furlong 3·35 chains or thereabouts in length of the Company's railway on the south-west side thereof commencing by a junction with that railway at a point thereon 5·35 chains or thereabouts measured in a westerly direction along that railway from the west end of the down platform of the Hammersmith Station on that railway and terminating by a junction with that railway at a point thereon ·10 chain or thereabouts measured in an easterly direction from the west face of the bridge carrying Great Church Lane over that railway.

Power to deviate laterally.

13. In the execution of the widening of railway at Hammersmith the Company may deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown thereon.

Power to deviate vertically.

14. In the execution of the widening of railway at Hammersmith the Company may deviate vertically from the levels thereof marked on the deposited sections to such an extent as may be found necessary or convenient.

Tolls &c. on widening.

15. The widening of railway at Hammersmith shall be deemed to be part of the railway of the Company and enactments which apply to the portions of railway of the Company so widened shall as regards tolls rates and charges and otherwise apply subject to the provisions of this Act to such widening.

Working of widening by electrical power.

16. The traffic on the widening of railway at Hammersmith may be worked by electrical power or steam or other motive power.

17. And whereas in the construction of the widening of railway at Hammersmith and of the other works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

A.D. 1915.
Owners may be required to sell parts only of certain lands and buildings.

The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are in this section included in the term "the owner" and the said properties are in this section referred to as "the scheduled properties":

The provisions of sub-sections (2) to (7) of section 41 of the Act of 1903 are incorporated with and form part of this section:

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845:

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

18. The Company may acquire by agreement and hold for the purposes of their undertaking any interest less than the fee simple in any lands which they are authorised to acquire under the powers of this Act.

Power to acquire leasehold interests and use lands held on lease.

19. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours and afterwards from time to time twelve hours previous

Power to Company to enter upon property for survey and valuation.

A.D. 1915. notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Costs of arbitration in certain cases.

20. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Compensation in case of recently altered buildings.

21. In settling any question of disputed purchase money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and

fourteen if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. A.D. 1915.

22.—(1) The Company and the London Company may enter into and carry into effect vary and rescind agreements with regard to the construction working maintenance and user of the widening of the Company's railway at Hammersmith by this Act authorised and of the Railways Nos. 6 and 7 in the parish and metropolitan borough of Hammersmith described in and authorised by the London Electric Railway Act 1913 and with regard to the maintenance working and user by the London Company of portions of the Company's railway at Hammersmith and with respect to the user by the Company of portions of the Company's railways at Hammersmith now exclusively used by the London Company and with respect to any further matters incidental thereto and to the payment by the London Company of the whole or part of such proper proportion of the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act as is attributable to the widening of the Company's railway at Hammersmith. Agreements with London Company.

(2) The Company and the London Company or either of them as the case may be may apply their respective revenues to the purposes of any such agreement and may also apply to any of such purposes to which capital is properly applicable any moneys which they now have in their hands or which they may have power to raise by shares or stock or borrowing or debenture stock and section 47 (Application of moneys) of the London Electric Railway Act 1913 shall not extend to any capital so applied by the London Company.

23. Nothing in any agreement made under the authority of this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the Railways Nos. 6 and 7 in the parish and metropolitan borough of Hammersmith described in and authorised by the London Electric Railway Act 1913 and from time to time to alter such telegraphic lines and to enter upon the said railways for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the making of any such agreement be at Saving for Postmaster-General.

A.D. 1915. liberty to exercise all the rights aforesaid notwithstanding that
----- the said railways are worked by the Company as freely and fully
in all respects as he was entitled to do before the making of
any such agreement.

For protec-
tion of Lon-
don County
Council.

24. The following provisions shall unless otherwise agreed
apply and have effect for the protection of the London County
Council (in this section called "the council") in respect to the
widening of the Company's railway at Hammersmith by this
Act authorised (that is to say) :—

- (1) The Company shall not in making maintaining working
or using the widening of railway at Hammersmith
in any manner obstruct hinder or interfere with the
free uninterrupted and safe user of the tramways of
the council or the tramways in Beadon Road or King
Street West or any traffic on such tramways and if
at any time hereafter the free uninterrupted and safe
user of the said tramways or any traffic thereon is
obstructed hindered or interfered with by the Com-
pany they shall pay to the council such damages as
the council sustain by reason thereof :
- (2) The Company shall be responsible for and make good to
the council all costs losses damages and expenses
which may be occasioned to the council or to the
said tramways or to any person using the same or
otherwise by reason of the construction maintenance
or failure of the widening of railway at Hammer-
smith or of any act or omission of the Company
or of any person in their employ or of their con-
tractors or others and the Company shall effectually
indemnify and hold harmless the council from all
claims and demands upon or against them by reason
of such construction maintenance or failure or of any
such act or omission :
- (3) Any part of the widening of railway at Hammersmith
situate under Beadon Road or The Broadway shall
be constructed only in accordance with plans sections
and specifications submitted to and approved by the
council but such approval shall not be unreasonably
withheld If the council fail to signify their approval
or disapproval or other directions within twenty-eight

days after the service of such plans sections and specifications it shall be deemed that the council approve such plans sections and specifications :

- (4) The Company shall not under the powers of this Act make any permanent ventilators air shafts or other similar openings of a permanent character in any street or footway :
- (5) The Company shall not under the powers of this Act permanently encroach upon any part of the surface of any street or footway in the administrative county of London or without the consent of the council erect any building beyond the general line of building in any street in the said county :
- (6) Any difference arising between the council and the Company under subsections (1) (2) and (3) of this section shall unless otherwise agreed be referred to and determined by an engineer to be agreed or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to such reference.

25. With reference to the widening of the Company's railway at Hammersmith by this Act authorised to be made and executed in the metropolitan borough of Hammersmith (in this section called "the borough") and for the protection of the council of the borough (in this section called "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply :—

For protec-
tion of Ham-
mersmith
Borough
Council.

- (1) The Company shall not break up any street or interfere with any sewer drain watercourse sanitary convenience electricity main pipe or apparatus or other work belonging to the corporation until they shall have given to the town clerk of the borough fourteen clear days' notice in writing of their intention to commence such intended works accompanied by plans and sections and other necessary particulars showing the works proposed to be executed by the Company so far as they affect such streets sewers drains watercourses sanitary conveniences and electricity mains pipes apparatus and other works proposed to be

A.D. 1915.
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interfered with and until the corporation shall have signified their approval of the same or if within the said period they shall not have signified their approval or if they have signified their disapproval a difference shall be deemed to have arisen within the meaning of this section All such works shall be done under the supervision and to the reasonable satisfaction of the corporation :

- (2) All streets within the borough broken up or interfered with or altered by the Company shall be restored to as good a condition as before the interference therewith respectively by the Company to the reasonable satisfaction of the corporation and where the surface of any street has been interfered with or disturbed by the Company the Company shall well and sufficiently and to the reasonable satisfaction of the corporation restore the surface of the street so interfered with or disturbed and if the level of any street is raised or lowered or altered by the Company any part of such street so raised or lowered or altered and the approaches thereto shall be put into a permanently substantial condition :
- (3) Whenever it may be necessary for the Company to intercept or interfere with any sewer or drain belonging to the corporation in a public roadway in the borough the Company shall submit particulars to the corporation who shall if necessary thereupon construct another sewer or drain in lieu of and of equal capacity with the sewer or drain so proposed to be intercepted or interfered with and connect such substituted sewer or drain with the nearest suitable existing sewer or drain and the Company shall pay the reasonable expense of all such works :
- (4) The provisions contained in section 40 (General provisions for protection of water gas hydraulic power and electric companies) of the Act of 1897 as extended and applied by this Act to the widening of the Company's railway at Hammersmith and works by this Act authorised shall be read and have effect as if the corporation were a protected company within the meaning of that section :

(5) All subways covered ways tunnels arches bridges and other works connected therewith which are constructed under the provisions of this Act within the borough shall be constructed and maintained by the Company in such manner as at all times to support not only the ordinary traffic and any other exceptional traffic lawfully using the streets within the borough but also any steam or other roller traction or other engine or motor which the corporation may use for repairing the streets or roadways or for other purposes and the Company shall indemnify and make good to the corporation all costs expenses or loss incurred or sustained by them by reason of any defect or insufficiency in strength in such subways covered ways tunnels arches bridges or works or by reason of any neglect properly and efficiently to maintain the same as aforesaid or otherwise by reason of the existence of the said widening of railway and works :

(6) The Company shall not without the consent of the corporation which shall not be unreasonably withheld erect any hoarding in connection with the construction of the said widening of the Company's railway on any part of any public footway in the borough nor shall the Company exhibit or permit to be exhibited upon any part of any hoardings erected in connection with the construction of the said widening of the Company's railway within view of any street within the borough any placards or advertisements other than those relating to railway purposes unless the same shall have been approved in writing by the corporation:

(7) The Company before temporarily obstructing any street within the borough shall provide and until the obstruction is removed maintain to the reasonable satisfaction of the corporation proper accommodation so far as is practicable for the traffic along such street and access to the houses and property therein and for preserving the uninterrupted supply of gas water and electricity to such houses and shall cause such obstruction to be properly fenced and lighted:

A.D. 1915.

- (8) The reasonable costs charges and expenses of or incurred by the surveyor or engineer of the corporation in respect of the necessary supervision by him of any works of the Company under this Act shall be borne and paid by the Company and shall be a debt due from the Company to the corporation:
- (9) If by reason of the execution of any of the works by this Act authorised within the borough the corporation shall necessarily incur any costs charges or expenses in the maintenance repair replacement or renewal of any street or roadway in the borough the Company shall repay the same to the corporation and the Company shall make full compensation to the corporation for any damage to or subsidence of any street roadway sewer drain or apparatus or other property belonging to or in the possession or under the control of the corporation in or under any street road or footway in or under which any part of the said widening of the Company's railway and works by this Act authorised may be executed and which damage or subsidence may be caused by or in consequence of the exercise of any powers authorised by this Act or by any act or default of the Company their contractors servants or agents or any person in the employment of them or any or either of them:
- (10) In this section the word "street" has the same meaning as that assigned to it by the Metropolis Management Act 1855:
- (11) If and so often as any difference shall arise between the Company and the corporation or their respective engineers under this section the same shall be determined by a single arbitrator to be appointed upon the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Midland Railway Company.

26. For the protection of the Midland Railway Company (hereinafter in this section called "the Midland Company") the following provisions unless otherwise agreed shall have effect (that is to say):—

- (1) The Midland Company shall be entitled to run over and use the widening of the Company's railway at Hammersmith by this Act authorised (in this section hereinafter referred to as "the said widening") upon the following terms (that is to say):— A.D. 1915.

(A) So far as the said widening does not form part of the Hammersmith Junction Railway authorised by the Metropolitan District Railway Act 1875 it shall be subject to the right of the Midland Company to run over and use the same upon the terms and conditions upon which the Midland Company now run over and use the railway of the Company at Hammersmith not forming part of the Hammersmith Junction Railway;

(B) So far as the said widening is a widening or variation of the said Hammersmith Junction Railway it shall except as in this section provided or as otherwise agreed be subject to all rights and obligations of the Midland Company contained in an agreement dated the twenty-fifth day of April 1876 between the Midland Company and the Company scheduled to and confirmed by the Midland Railway (Further Powers) Act 1877 as modified by and defined in section 40 of the Metropolitan District Railway Act 1878 and in an agreement dated the first day of July 1913 between the London Company of the first part the Company of the second part and the Midland Company of the third part including the method of ascertaining the balance of the Hammersmith Junction Fund referred to in the said section 40 of the Metropolitan District Railway Act 1878 as regulated by the last-mentioned agreement as if such portion of the said widening were part of the Hammersmith Junction Railway:

- (2) The Company or the London Company shall pay to the Midland Company the yearly sum of three hundred pounds reserved by Article 1 of the said agreement of the first day of July 1913 from the date of the opening for traffic of the said widening for trains of

A.D. 1915.

the London Company or from the date of the opening for traffic of the Railways Nos. 6 and 7 authorised by the London Electric Railway Act 1913 or either of those railways whichever of those dates shall be the earliest and the first payment thereof shall become due at the expiration of twelve months from the earliest of those dates and no contribution or apportionment of receipts to the Hammersmith Junction Fund or (except as hereinafter provided in this subsection) further payment to the Midland Company shall be made in respect of traffic passing over the Hammersmith Junction Railway from or to the railway of the London Company Provided that if through trains shall run from or to the railway of the London Company by means of the said widening as well as by Railways Nos. 6 and 7 authorised by the London Electric Railway Act 1913 the Midland Company may claim an addition to such yearly sum of three hundred pounds and failing agreement the question of what (if any) such addition should under those circumstances fairly be made in respect of any further depletion being thereby caused to the Hammersmith Junction Fund by reason of both such means being available for the running of such through trains shall be referred to and determined by an arbitrator to be appointed on the application of the Midland Company the Company or the London Company by the Board of Trade and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference:

- (3) Nothing in this Act contained shall affect or alter the obligations of the Midland Company with respect to the payment of the sum by way of rent mentioned in section 40 of the Metropolitan District Railway Act 1878 or the application thereof.

For protection of London United Tramways Limited.

27. For the protection of the London United Tramways Limited (in this section called "the tramway company") the following provisions shall unless otherwise agreed in writing have effect in respect to the widening of the Company's railway at Hammersmith (that is to say):—

- (1) The Company shall carry out the works authorised by this Act and shall thereafter maintain the same in such manner as not to damage or interfere with the tramways in the metropolitan borough of Hammersmith owned or worked by the tramway company (including the substructure thereof and the posts cables wires and other apparatus connected therewith) and so as not to cause any interruption of or impediment to the traffic on the said tramways: A.D. 1915.
- (2) The Company shall pay to the tramway company all reasonable expenses to which the tramway company may be put by or in consequence of the said works and in payment of watchmen and inspectors during the construction of the said works and any reasonable additional expense which may be caused to the tramway company by or in consequence of the construction maintenance or user of the said works:
- (3) The Company shall indemnify the tramway company against all claims arising in respect of and compensate them for any injury to the property or works of the tramway company or to any person or persons using the said tramways in consequence of or during the construction of the said works or the subsequent user thereof but the appointment by the tramway company of any inspector or the superintendence of any works by the tramway company shall not relieve the Company from any liability in connection with any works carried out by the Company:
- (4) The Company shall carry out such works as the tramway company may reasonably consider necessary for the protection of the said tramways and other property against damage from subsidence or other causes:
- (5) If any difference shall arise under this section the same shall be referred to and determined by an arbitrator to be appointed (unless otherwise agreed) by the President of the Institution of Civil Engineers on the application of either party after notice to the other and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

A.D. 1915.

For protec-
tion of
Metropolitan
Water Board.

28. For the protection of the Metropolitan Water Board (in this section referred to as "the Board") the following provisions shall unless otherwise agreed in writing between the Company and the Board have effect in respect to the widening of the Company's railway at Hammersmith by this Act authorised (that is to say):—

- (1) The provisions contained in section 40 (General provisions for protection of water gas hydraulic power and electric companies) of the Act of 1897 (in this section referred to as "the protective section") as extended and applied by the section of this Act whereof the marginal note is "Incorporation of certain sections of Acts relating to Company" to the widening of the Company's railway at Hammersmith by this Act authorised shall be read and have effect as if the Board were a protected company within the meaning of that section. Provided that the following modifications of the said section in its application to the Board and their apparatus shall have effect (that is to say):—

(a) The period of twenty-eight days shall be substituted for the period of fourteen days mentioned in subsections (1) and (2) of the protective section and the period of fourteen days shall be substituted for the period of seven days mentioned in the said subsection (1);

(b) The President of the Institution of Civil Engineers shall be substituted for the Board of Trade in subsection (7) of the protective section:

- (2) The Company shall not remove raise sink or otherwise alter the apparatus of the Board or do anything which may impede the passage of water into or through the same without the consent in writing of the engineer of the Board or in any manner other than the said engineer shall approve (such consent or approval as the case may be not to be unreasonably withheld) and until such good and sufficient apparatus as the said engineer may consider reasonably necessary for continuing the supply of water has been first provided laid down and made ready for use:

- (3) The Company in executing the said widening of the Company's railway or in removing raising sinking or otherwise altering the position of any apparatus of the Board shall make good all damage done by them to the apparatus or other property of the Board and shall make reasonable compensation to the Board for any loss or damage which they may sustain by reason of any interference with their apparatus or property: A.D. 1915.
- (4) The Company shall not raise sink or otherwise alter the position of any apparatus of the Board or alter the level of any street or road in which any such apparatus is situate so as to leave over such apparatus a covering of more than five feet nor wherever reasonably practicable of less than three feet nor in any case a less covering than that existing at the passing of this Act over such apparatus of the Board where it crosses the existing railway of the Company :
- (5) All works to be executed or provided under this section or the protective section in connection with any apparatus of the Board shall be so executed and provided by and at the expense of the Company but to the reasonable satisfaction and under the superintendence of the engineer of the Board and the reasonable costs charges and expenses of such superintendence shall be paid by the Company :
- (6) The provisions of this section shall except as otherwise expressly provided be in addition to and not in substitution for or derogation of any other provision of this Act to the benefit of which the Board would otherwise be entitled :
- (7) If any difference shall arise under this section between the Company and the Board or their respective engineers or if in any case the engineer of the Board withholds his consent approval or sanction a difference shall thereupon be deemed to have arisen between the Company and the Board with regard thereto then and in every such case such difference shall be settled in accordance with the provisions of subsection (7) of the protective section as modified by this section.

A.D. 1915.

For protec-
tion of
Brentford
Gas Com-
pany.

29. The provisions of section 40 (General provisions for protection of water gas hydraulic power and electric companies) and section 42 (For further protection of Gas Light and Coke Company) of the Act of 1897 incorporated with this Act shall apply for the protection of the Brentford Gas Company as if that company had been specifically named therein.

Power to
stop up
existing and
to construct
new foot-
path at
Hounslow.

30.—(1) The Company may divert and stop up so much of the existing footpaths in the parish of Heston and urban district of Heston and Isleworth in the county of Middlesex leading from Kingsley Road to Heston Road as is coloured green on the plan signed in triplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one copy of which plan has been deposited with the Clerk of the Parliaments House of Lords one copy in the Private Bill Office of the House of Commons and the remaining copy has been deposited with the Heston and Isleworth Urban District Council) and in lieu of such footpaths the Company may in the line shown and coloured pink on such plan make in the said parish and urban district a new footpath (in this section referred to as "the new footpath") The new footpath shall be constructed with a clear width throughout of not less than six feet and shall be tar paved and provided with sufficient gas lamps and the necessary pipes and connections for supplying the same with gas.

(2) The stopping up of the said existing footpaths or any portion thereof shall not take place until the new footpath has been completed to the satisfaction of the Heston and Isleworth Urban District Council and is opened for public use or in case of difference between the Company and the said council until two justices shall have certified that the new footpath has been completed to their satisfaction and is opened for public use.

(3) As from the date of the said certificate all public rights of way (if any) over or along the said portions of the existing footpaths shall be extinguished.

(4) The new footpath when made and completed shall unless otherwise agreed between the road authority of the district in which the same is situate and the Company be repaired maintained and lighted by and at the expense of the road authority.

31. The powers of the Company for the compulsory purchase of lands authorised by this Part of this Act shall cease after the expiration of three years from the passing of this Act. A.D. 1915.
 Period for compulsory purchase of lands.

32. The construction of the widening at Whitechapel of the Company's railway two chains or thereabouts in length in the parish of Saint Mary Whitechapel in the metropolitan borough of Stepney in the county of London on the north side of the bridge carrying the Whitechapel and Bow Railway over the railway of the East London Railway Company at the eastern end of the Company's Whitechapel Station the purchase of lands therefor and the application of funds to such purposes is hereby sanctioned and confirmed and the said widening may be maintained and worked accordingly Section 10 (Agreement with Whitechapel and Bow Railway Company as to Railway No. 4) section 16 (Working of railways by electrical power) and section 35 (Tolls &c.) of the Act of 1906 shall extend and apply to such widening as if it had been referred to in such sections instead of Railway No. 4 by that Act authorised and section 12 (For protection of Postmaster-General) of the Act of 1901 shall extend and apply to such widening and to the Company in respect thereof. Sanction of widening at Whitechapel.

PART IV.

EXTENSIONS OF TIME.

33.—(1) The powers granted to the South Western Company by the Act of 1912 for the compulsory purchase of lands by the South Western Company for the purposes of the widening of their Wimbledon and Fulham Railway authorised by that Act are hereby extended for a period of three years from the seventh day of August one thousand nine hundred and fifteen. Extension of time for compulsory purchase by South Western Company of lands authorised by Act of 1912.

(2) The South Western Company shall pay to the Company one moiety of such proper proportion of the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act as is attributable to the matters contained in this section. Proportion of costs of Act to be paid by South Western Company.

34. The powers granted to the Company by the Act of 1912 for the compulsory purchase by the Company of the easements or right of using the undersurface of all or any of the Extension of time for compulsory purchase by

[Ch. xxii.] *Metropolitan District Railway* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. lands and property in the county of London in the city and
 Company of metropolitan borough of Westminster and in the parish of
 easements Saint Martin in the Fields described in section 5 of that Act
 authorised are hereby extended for a period of three years from the
 by Act of seventh day of August one thousand nine hundred and
 1912. fifteen.

Extension of
 time for com-
 pulsory pur-
 chase by
 Company of
 lands autho-
 rised by Act
 of 1910.

35. The powers granted to the Company by the Act of 1910 and extended by the Act of 1913 for the compulsory purchase by the Company of the following lands and property described in section 45 of the Act of 1910 (namely):—

(1) The houses lands and premises in the parish of St. George Hanover Square in the city and metropolitan borough of Westminster known as Nos. 193 and 195 Victoria Street;

(2) The footbridge over the railway and Mansion House station of the Company in the parish of the city of London in the city of London;

are hereby extended for a period of three years from the third day of August one thousand nine hundred and fifteen.

Extension of
 time for com-
 pulsory pur-
 chase by
 Company of
 lands autho-
 rised by Act
 of 1911.

36. The powers granted to the Company by the Act of 1911 and extended by the Act of 1913 for the compulsory purchase by the Company of the houses lands and premises in the parish of St. George Hanover Square in the city and metropolitan borough of Westminster known as Nos. 197 199 201 and 203 Victoria Street described in section 40 of the Act of 1911 are hereby extended for a period of three years from the second day of June one thousand nine hundred and sixteen.

PART V.

WIMBLEDON AND SUTTON RAILWAY.

Extension of
 time for
 completion
 of works
 authorised
 by Wimble-
 don Act
 1910.

37. The period limited by the Wimbledon Act of 1910 as extended by the Wimbledon Act of 1913 for the construction and completion by the Wimbledon Company of the railways and works authorised by the Wimbledon Act of 1910 is hereby further extended for a period of three years from the twenty-sixth day of July one thousand nine hundred and eighteen and the Wimbledon Act of 1910 shall be read and construed as if the period limited by this Act for the construction and completion of such railways and works had been the period

limited by the Wimbledon Act of 1910 for the construction and completion thereof. A.D. 1915.

38. The powers granted to the Wimbledon Company by the Wimbledon Act of 1910 as extended by the Wimbledon Act of 1913 for the compulsory purchase of lands by the Wimbledon Company for the purposes of the railways and works authorised by the Wimbledon Act of 1910 are hereby extended for a period of three years from the twenty-sixth day of July one thousand nine hundred and fifteen. Provided that the provisions of this section shall apply to and be deemed to be the extended time referred to in paragraph (B) of subsection (3) of section 74 (For protection of owner of Wimbledon Laundry) of the Wimbledon Act of 1910.

Extension of time for compulsory purchase by Wimbledon Company of lands authorised by Wimbledon Act of 1910.

39.—(1) The time limited by section 26 (Payment of interest out of capital) of the Wimbledon Act of 1913 for the payment of interest out of capital during construction is hereby extended for a period of three years from the twenty-sixth day of July one thousand nine hundred and eighteen.

Extension of time for payment of interest out of capital under Wimbledon Act of 1913 &c.

(2) This Act shall be deemed to be an Act modifying extending or amending the Wimbledon Act of 1910 and the Wimbledon Act of 1913.

40. The mains of the Metropolitan Water Board referred to in subsection (2) of section 67 (For protection of Metropolitan Water Board) of the Wimbledon Act of 1910 shall include all mains of the Board laid in the road referred to in that subsection at the time of the construction of the bridge also therein referred to.

Explaining section 67 of Wimbledon Act of 1910.

41. Subsection (1) of section 79 (For protection of Croydon Rural District Council) of the Wimbledon Act of 1910 shall be read and have effect as if the span of the bridge carrying the road known as Central Road therein referred to over the railway authorised by the Wimbledon Act of 1910 were to be not less than fifty feet instead of not less than forty feet.

Amendment of section 79 of Wimbledon Act of 1910.

42. The Company may with the authority of not less than three-fourths of the votes of such proprietors of the Company entitled to vote as are present in person or by proxy at a general meeting of the Company specially convened for the purpose guarantee as a working expense of their railway the payment of the whole or any portion of the dividends and

Guarantee by Company of dividends on Wimbledon Company's capital.

[Ch. xxii.] *Metropolitan District Railway* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

(2) The Company may hold and use for such purposes as they may think fit such parts of the said lands as they may not require for the purposes of any such agreement and may from time to time sell lease or otherwise dispose of the same and section 127 of the Lands Clauses Consolidation Act 1845 with respect to the sale of the superfluous lands shall not apply to any such lands.

(3) The Company may apply to the general purposes of their undertaking to which capital is properly applicable any moneys arising from the sale or disposal of any such lands or easements.

For better
prevention of
trespass on
railways of
Company.

46. Any person who shall trespass upon any of the lines of railways or sidings or any part of the Company's railway occupied by live electrical apparatus for or in connection with the working of the railway now or hereafter belonging or leased to or worked by the Company solely or in conjunction with any other company or companies shall on conviction be liable to a penalty not exceeding forty shillings and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the recovery of damages not specially provided for and of penalties and to the determination of any other matters referred to justices shall apply to this enactment Provided that no person shall be subject to any penalty under this enactment unless it shall be proved to the satisfaction of the justices before whom complaint is laid that by notices printed on boards or printed on paper and pasted on boards or enamelled on metal or otherwise as the Company may think fit and clearly exhibited public warning has been given to persons not to trespass upon the lines of railways or sidings or any part of the Company's railways occupied by live electrical apparatus for or in connection with the working of the said railway and that one or more of such notices has been affixed at the station on such railway and at the public road level crossing (if any) nearest to the spot where such trespass is alleged to have been committed and such warning shall be renewed as often as the same shall be obliterated or destroyed and no penalty shall be recoverable unless such warning is so placed and renewed Provided also, that no person lawfully crossing any such railway at any level crossing thereof shall be liable to any such penalty as aforesaid And provided lastly that this enactment shall not interfere with but shall be subject to any future general enactment on the subject of trespassing on railways.

47. The sections of the Metropolitan and District Railways (City Lines and Extensions) Act 1879 and of the Acts of 1897 1901 1902 1903 and 1906 which are enumerated and referred to in the Second Schedule to this Act (except so far as the same or any part or parts thereof are expressly repealed amended or varied by this Act) are incorporated with and form part of Part III. of this Act and shall so far as applicable extend and apply to the Company and to the powers conferred upon them by this Act with respect to the widening of the Company's railway at Hammersmith as fully and effectually to all intents and purposes as if those sections had been re-enacted mutatis mutandis in this Act. Provided that for the purposes of such incorporation where the context so requires the expressions "the railway" or "the railways" or "the widenings" where used in those sections shall mean the widening of the Company's railway at Hammersmith and the expression "the two companies" where used in those sections shall mean the Company:

A.D. 1915.
Incorporation of certain sections of Acts relating to Company.

Provided that any provisions of the said incorporated sections referring to a vestry or district board shall be read and have effect as applying to the council of a metropolitan borough.

48. Nothing in this Act contained shall exempt the Company the South Western Company or the Wimbledon Company or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company the South Western Company or the Wimbledon Company respectively.

Provision as to general Railway Acts.

49. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall in the first instance be paid by the Company.

Costs of Act.

A.D. 1915. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING LANDS HOUSES AND MANUFACTORIES OF WHICH
PORTIONS ONLY MAY BE TAKEN AND WHICH ARE REFERRED
TO IN THE SECTION OF THIS ACT OF WHICH THE MARGINAL
NOTE IS "OWNERS MAY BE REQUIRED TO SELL PARTS ONLY
OF CERTAIN LANDS AND BUILDINGS."

Parish or other Area.	Numbers on deposited Plans.
WIDENING.	
Metropolitan borough and parish of Hammersmith	1 to 20

THE SECOND SCHEDULE.

SECTIONS AND PROVISIONS OF THE METROPOLITAN AND DISTRICT
RAILWAYS (CITY LINES AND EXTENSIONS) ACT 1879 AND
OF THE ACTS OF 1897 1901 1902 1903 AND 1906 WHICH
ARE INCORPORATED WITH THIS ACT AND WHICH ARE
REFERRED TO IN THE SECTION OF THIS ACT OF WHICH THE
MARGINAL NOTE IS "INCORPORATION OF CERTAIN SECTIONS
OF ACTS RELATING TO COMPANY."

Marginal Note of Section.	Number of Section.
METROPOLITAN AND DISTRICT RAILWAYS (CITY LINES AND EXTENSIONS) ACT 1879.	
The two companies may acquire easements only under roads &c. and purchase cellars &c.	16
ACT OF 1897.	
Power to retain sell &c. lands	14
Walls of buildings to be made good	36
As to exhibition of placards within county of London	38
General provisions for protection of water gas hydraulic power and electric companies.	40

[5 & 6 GEO. 5.] *Metropolitan District Railway*
Act, 1915.

[Ch. xxii.]

Marginal Note of Section.	Number of Section.	A.D. 1915.
For further protection of Gas Light and Coke Company - -	42	
For protection of sewers of district boards and vestries - -	51	
Company empowered to underpin or otherwise strengthen houses near railway.	58	
Provisions as to use of electric power - - - - -	87	
ACT OF 1901.		
For protection of Postmaster-General - - - - -	12	
ACT OF 1902.		
For protection of sewers of council - - - - -	14	
ACT OF 1903.		
Company not liable to repair surface of road level of which is not permanently altered.	8	
Persons under disability may grant easements &c. - - -	40	
ACT OF 1906.		
Application of London Building Acts - - - - -	18	
Objects of interest to be at disposal of London County Council -	22	

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